

****November 28, 2024****

****Sanction for Violation of GDPR****

The National Supervisory Authority for Personal Data Processing completed an investigation in October 2024 at the operator Rompetrol Downstream SRL and found a violation of Article 32 paragraph (1) letter b) and paragraph (2), in conjunction with Article 83 paragraph (4) letter a) of Regulation (EU) 2016/679. As such, the operator was fined in the amount of 19,893.20 lei, equivalent to 4,000 euros.

The investigation was initiated following the notification of a personal data security breach by the operator Rompetrol Downstream SRL, based on the obligation it has under the provisions of Article 33 of Regulation (EU) 2016/679.

It was reported that several individuals received unauthorized emails containing malicious "phishing" content.

Additionally, in the context of the same incident, personal data belonging to data subjects, such as: email address, first and last names contained in the email name, first name, last name, and signatures, which were in files belonging to the operator, were downloaded and accessed illegally.

During the investigation, it was found that the operator's email address intended for correspondence with clients, managed and used exclusively by a legal entity authorized by the operator, had a password known to several of its employees, which allowed unauthorized access to the email address in question, thus violating data confidentiality.

It was also found that the operator had not implemented adequate technical and organizational measures to ensure a level of security appropriate to the risk of processing personal data, including the ability to ensure confidentiality.

As such, Rompetrol Downstream SRL was fined for violating the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of Regulation (EU) 2016/679.

Additionally, a corrective measure was imposed on the operator to establish an inspection/audit plan at the level of the authorized person, to take measures to rectify the identified deficiencies, in order to avoid similar security incidents.

****Legal and Communication Department****

****N.S.A.P.D.C.P****